

23STCV17209 23STCV17209

County: los-angeles

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Case Number: 23STCV17209 Hearing Date: September 10, 2026 Dept: 1

Final

Approval of Class Action Settlement

Department

SSC-1

Hon. Theresa M. Traber

Jesus Patino Perez v. Box Express, MFG.

Case

No.: 23STCV17209

Hearing: September 10, 2026

TENTATIVE

RULING

The Court Grants final approval of the settlement and awards/approves the following: (1) \$250,000 (1/3) for attorneys' fees to Class Counsel, Blackstone Law, APC and Bibiyan Law Group, P.C.; (2) \$25,349.56 in attorney costs to Class Counsel; (3) \$7,500 to the class representative Ingrid Ruano for an enhancement award; (4) \$6,990 for claims administration costs to Apex Class Action LLC; and (5) Payment of \$56,250 (75% of \$75,000.00) to the LWDA.

Class counsel is ordered to file a final report summarizing all distributions made pursuant to the approved

settlement, supported by declaration. The Court will set a non-appearance date for submission of a final report for _____, 2026, with the final report due to be filed at least five court days in advance.

BACKGROUND

On July 21, 2023, Jesus Patino Perez ("Perez"), individually and on behalf of all others similarly situated, filed this action against Defendant Box Express, MFG. ("Defendant" or "Box Express") and Does 1 through 100 for violations of the California Labor Code and the California Business and Professions Code. After the complaint had been filed, the Court was informed that Perez passed away on August 1, 2023.

On March 27, 2024, Plaintiff Ingrid Ruano ("Plaintiff" or "Ruano"), individually and on behalf of all others similarly situated, filed a class action against Defendant Box Express for violations of the California Labor Code and the California Business and Professions Code (Case No. 24STCV07784) ("Ruano Class Action"). On the same day, Ruano filed a representative action against Box Express, individually and on behalf of Aggrieved Employees, pursuant to the Private Attorneys General Act ("PAGA") (Case No. 24STCV07695) ("Ruano PAGA Action").

On August 28, 2024, Defendant filed a Notice of Related Case listing the Ruano Class Action, Case No. 24STCV07784, and the Ruano PAGA Action, Case No. 24STCV07695.

On September 26, 2024, A First Amended Class Action Complaint ("FAC") was filed in the instant action substituting Jesus Patino Perez with Plaintiff Ruano, as no estate representative for Perez was designated in the instant action. The FAC asserts claims for (1) failure to pay overtime wages, (2) failure to pay minimum wages, (3) failure to provide meal periods, (4) failure to provide rest periods, (5) waiting time penalties, (6) wage statement violations, (7) failure to timely pay wages, (8) failure to indemnify, (9) failure to pay interest on deposits, and (10) unfair competition.

On October 11, 2024, the Court found the instant case (No. 23STCV17209) and the two complaints filed by Ruano (Nos. 24STCV07695 and 24STCV07784) to be related within the meaning of California Rules of Court,

rule 3.300(a), and designated Case No. 23STCV17209 as the lead case.

On December 13, 2024, the Court denied Defendant's motions to compel arbitration in the Ruano Class Action and the Ruano PAGA Action. On December 16, 2024, pursuant to the joint stipulation of the parties and Plaintiff Ruano's request, the Court dismissed the Ruano Class Action, Case No. 24STCV07784, without prejudice.

On December 18, 2025, Plaintiff Ruano attempted to file a Second Amended Class and Representative Action Complaint ("SAC") in the instant case. However, the filing was rejected on the basis that a court order is required to file the SAC.

On April 14, 2026, Plaintiff filed the operative SAC.

On July 31, 2025, the parties participated in an all-day mediation presided over by Tagore Subramaniam, Esq. and with the mediator's evaluations, a settlement was reached. (Declaration of Jasmine Y. Kianfard ("Kianfard Decl."), ¶18.) The terms of settlement were finalized in the Joint Stipulation of Class Action and PAGA Settlement ("Settlement Agreement"), a fully executed copy of which is attached to the Supplemental Declaration of Jasmine Y. Kianfard as Exhibit 1.

On April 14, 2026, the Court held a hearing on the motion for preliminary approval and continued the hearing for counsel to address the deficiencies. On April 28, 2026, Plaintiff filed a Further Supplemental Declaration of Jasmine Y. Kianfard and a joint statement regarding the installment plan.

Preliminary Approval was granted on May 13, 2026. Notice was given to the Class Members as ordered. (See Declaration of Madely Nava ("Nava Decl.").)

Now before the Court is the Parties' Motion for Final approval of the proposed class action settlement.

CLASS

DEFINITION AND ESSENTIAL MONETARY TERMS OF SETTLEMENT
AGREEMENT

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“Class” or “Class Member(s)” means all current and former non-exempt, hourly paid employees who worked for Defendant in the State of California at any time during the Class Period. (¶11b)

o “Class Period” means the period from July 21, 2019 through September 29, 2025. (¶11f)

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“PAGA Member(s)” means all current and former non-exempt, hourly paid employees who worked for Defendant in the State of California at any time during the PAGA Period. (¶11y)

o “PAGA Period” means the period from August 4, 2022 through September 29, 2025. (¶11aa)

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Gross Settlement Amount (“GSA”) is \$750,000, non-reversionary. (¶11q)

o Escalator

Clause: Defendant represented that the Class Members worked a total of 20,374 Workweeks during the Class Period. If it is determined by the Settlement Administrator that the total number of Workweeks worked by the Class Members during the Class Period actually exceeds 20,374 by more than 10% (i.e., if the Workweeks exceed 22,412 or an additional 2,038 Workweeks worked), then the Gross Settlement Amount will be increased on a pro rata basis equal to the percentage increase in the number of Workweeks worked by the Class Members above 10%. For example, if the number of Workweeks increases by 12%, then the Gross Settlement Amount will increase by 2%.

(¶18)

§ The

Class List consisted of a total of 213 individuals identified as Class Members who worked 18,924.42 Workweeks. Accordingly, the Escalator Clause was not triggered. (Nava Decl., ¶5.)

.

The Net Settlement Amount ("Net") (\$395,250) is the GSA minus the following:

- o Up to \$250,000
(1/3 of GSA) for attorney fees (¶14);

§ Fee

Split: Blackstone Law, APC and Bibiyan Law Group, P.C. have executed a Joint Prosecution and Fee-Sharing Agreement agreeing for attorneys' fees to be split fifty percent (50%) to Blackstone Law, APC and fifty percent (50%) to Bibiyan Law Group, P.C. Blackstone Law, APC and Sunset West Legal Group, PC have entered into an agreement regarding a referral fee only. (Kianfard Further Supp. Decl., ¶8.)

- o Up to \$30,000
for attorney costs (Ibid.);

- o Up to \$10,000
for a service award to Plaintiff (¶15);

- o Up to \$8,500
for settlement administration costs (¶17); and

- o Payment
of \$56,250 (75% of \$75,000 PAGA penalty) to the LWDA (¶16).

.

Defendant shall separately pay all employer payroll taxes owed on the Wage Portions of the Individual Class Payments. (¶11q)

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Funding of Settlement: Defendant will fund the Gross Settlement Amount in two (2) installments as follows: (¶37)

- o First
Installment: Defendant will deposit half of the Gross Settlement Amount (i.e., \$375,000.00) and half of the Employer Taxes as follows: (¶37a)

§ i. If no

objection(s), no later than seven (7) business days after Final Approval.

§ ii. If

there is an objection(s), no later than sixty-five (65) calendar days following entry of the Final Approval Order and Judgment (provided no appeal is filed).

§ iii. If

an appeal is filed to the Final Approval Order and Judgment, no later than thirty (30) business days after the Final Approval Order and Judgment is affirmed.

o Second

Installment: Defendant will deposit the remaining half of the Gross Settlement Amount (i.e., \$375,000.00) and the remaining half of the Employer Taxes six (6) months after the First Installment. (¶37b)

o No later

than seven (7) business days after Final Approval, Defendant will provide all information necessary for the Settlement Administrator to calculate necessary payroll taxes including its official name, 8-digit state unemployment insurance tax ID number, and other information requested by the Settlement Administrator. (¶37c)

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Disbursement: Within five (5) business days of the funding of the First Installment, the Settlement Administrator will issue half of the Individual Settlement Payments to Settlement Class Members, half of the Individual PAGA Payments to PAGA Members, half of the LWDA Payment to the LWDA, half of the Enhancement Payment to Plaintiff, half of the Attorneys' Fees and Costs to Class Counsel, and half of the Settlement Administration Costs to itself. (¶38a) Within five (5) business days of the funding of the Second Installment, the Settlement Administrator will issue the remaining half of the Individual Settlement Payments to Settlement Class Members, the remaining half of the Individual PAGA Payments to PAGA Members, the remaining half of the LWDA Payment to the LWDA, the remaining half of the Enhancement Payment to Plaintiff, the remaining half of the Attorneys' Fees and Costs to Class Counsel, and the remaining half of the Settlement Administration Costs to itself. The Settlement Administrator shall also set aside the Employer Taxes and all employee-side payroll taxes, contributions, and withholding, and timely forward these to the appropriate government authorities. (¶38b)

o The

Settlement Administrator will be responsible for undertaking appropriate deductions, required tax reporting, and issuing the Individual Settlement Payments by way of check to the Settlement Class Members and the Individual PAGA Payments by way of check to the PAGA Members in accordance with this Settlement Agreement. When issuing payments, the Settlement Administrator may combine the Individual Settlement Payment and Individual PAGA Payment into one check if the intended recipient for both payments is one individual. (§139)

Uncashed Settlement Checks: Each Individual Settlement Payment and Individual PAGA Payment check will be valid and negotiable for one hundred and eighty (180) calendar days from the date the checks are issued, and thereafter, shall be canceled. Any funds associated with such canceled checks shall be distributed by the Settlement Administrator to the State of California's Unclaimed Property Division in the name of the Settlement Class Member and/or PAGA Member. The Parties agree that this disposition results in no "unpaid residue" under California Civil Procedure Code Section 384, as the entire Net Settlement Amount will be paid out to Settlement Class Members, whether or not they cash their settlement checks. Therefore, Defendant will not be required to pay any interest on such amounts. The Settlement Administrator shall undertake amended and/or supplemental tax filings and reporting required under applicable local, state, and federal tax laws that are necessitated due to the cancelation of any Individual Settlement Payment and/or Individual PAGA Payment checks. Settlement Class Members whose Individual Settlement Payment checks are canceled shall, nevertheless, be bound by the Class Settlement, and PAGA Members whose Individual PAGA Payment checks are canceled shall, nevertheless, be bound by the PAGA Settlement. (§139)

The proposed settlement was submitted to the LWDA on January 26, 2026. (Kianfard Supp. Decl., ¶4, Ex. 2.)

ANALYSIS OF SETTLEMENT AGREEMENT

A.

Does

a presumption of fairness exist?

The

Court preliminarily found in its Order on March 13, 2026 that the presumption of fairness should be applied. No facts have come to the Court's attention that would alter that preliminary conclusion.

Accordingly, the settlement is entitled to a presumption of fairness as set forth in the preliminary approval order.

B. Is the settlement
fair, adequate, and reasonable?

The settlement was preliminarily found to be
fair, adequate and reasonable. Notice
has now been given to the Class and the LWDA.

Reaction of the class members to the proposed settlement.

Number of class members: 213 (Nava
Decl., ¶5.)

Number
of notice packets mailed 213 (Id. at
¶7.)

Number
of undeliverable notices: 2 (Id. at ¶9.)

Number of
opt-outs: 0 (Id. at ¶11.)

Number of objections: 0 (Id. at ¶12.)

Number
of participating Class Members: 213 (Id.
at ¶14.)

Average
Individual Payment: \$1,767.60 (Id. at ¶16.)

Highest

Individual Payment: \$6,428.85 (Ibid.)

Lowest

Individual Payment: \$19.89 (Ibid.)

Number of PAGA Members: 115 (Id. at ¶17.)

Average

PAGA payment: \$163.04 (Id. at ¶18.)

Highest

PAGA payment: \$356.86 (Ibid.)

Lowest

PAGA payment: \$4.30 (Ibid.)

The Court finds that the notice was given as directed and conforms to due process requirements. Given the reactions of the Class Members and the LWDA to the proposed settlement and for the reasons set for in the Preliminary Approval order, the settlement is found to be fair, adequate, and reasonable.

C.

Attorney

Fees and Costs

Class Counsel requests \$250,000 (33.3%) in fees and litigation costs and expenses in the amount of \$ 25,349.56 to Class Counsel. (Kianfard Decl. ISO Final, ¶32.) The Settlement provides for attorney's fees up to \$250,000 and costs of \$30,000 (Settlement Agreement, ¶14); the class was provided notice of the requested awards and none objected. (Nava Decl., ¶12 and Exhibit A thereto.)

"Courts recognize two methods for calculating attorney fees in civil class actions: the lodestar/multiplier method and the percentage of recovery method."

(Wershba at 254.)

Here, class counsel requests attorney fees using the percentage method.

(Motion ISO Final, pgs. 14-22.)

The fee request represents 33.3% of the gross settlement amount which is the average generally awarded in class actions. See *In re Consumer Privacy Cases* (2009) 175 Cal.App.4th 545, 558, fn. 13 (“Empirical studies show that, regardless whether the percentage method or the lodestar method is used, fee awards in class actions average around one-third of the recovery.”).

Counsel has provided the following lodestar information:

Biller

Rate

Hours

Total

David D. Bibiyan

\$1,100

13.6

\$14,960

Sarah J. Cohen

\$900

91.3

\$82,170

Vedang J. Patel

\$800

12.5

\$10,000

Lizette Rodriguez

\$700

34.7

\$24,290

Randal Oakley

\$700

29.4

\$20,580

Brandon M. Chang

\$650

14.4

\$9,360

Michael Braud

\$450

5.5

\$2,475

Paralegals

\$200

8

\$1,600

Jonathan M. Genish

\$1,295

17.4

\$22,533

Miriam L. Schimmel

\$1,075

63.2

\$67,940

Megan E. Ross

\$1,000

54.3

\$54,300

Joana Fang

\$750

35.1

\$26,325

Alexandra Rose

\$750

15.3

\$11,475

Jared C. Osborne

\$675

9.4

\$6,345

Jasmine Y. Kianfard

\$550

26.7

\$14,685

Total

430.8

\$369,038

(Kianfard

Decl. ISO Final, ¶36; Bibiyan Decl. ISO Final, ¶16.)

Therefore, Class Counsel will have spent a total of 430.8 hours on this litigation for a total loadstar of \$369,038, resulting in a negative multiplier to reach the fee request. (Ibid.)

As for costs, class counsel has and

will incur costs of \$25,349.56 throughout the completion of this litigation. (Kianfard

Decl. ISO Final, ¶32, and Exhibit 4 thereto; Bibiyan Decl., Exhibit 1.) Class Counsel is requesting \$25,349.56 in costs, which is less than the settlement cap of \$30,000. (Ibid.)

The class was provided with notice of the costs in the amount of \$30,000, and none objected. (Nava Decl., ¶12 and Exhibit A thereto.)

The costs in this case include, but are not limited to, filing/service costs for the PAGA and class summons and complaint packet (\$2,644.4), expert costs (\$7,965), and mediation costs (\$9,250). (Kianfard Decl. ISO Final, ¶32, and Exhibit 4 thereto; Bibiyan Decl., Exhibit 1.) The costs seem reasonable and necessary to the litigation.

Based on the above, the Court awards \$250,000 for fees and \$25,349.56 for litigation costs.

D.

Incentive

Award to Class Representative

The Settlement Agreement provides for up to \$10,000 for a Service Payment to the Named Plaintiff. (Settlement Agreement, ¶15.)

Plaintiff Gonzalez represents that her contributions to this litigation include, but are not limited to conferring with counsel, searching for documents, helping with strategy as to documents to obtain, and reviewing and signing the settlement. (Nava Decl., ¶¶4-8.) She represents she has spent approximately 45-50 hours participating in this case. (Id. at ¶9.)

Based

on the above, the Court grants an enhancement award in the reduced amount of \$7,500.

E.

Claims

Administration Costs

The claims administrator requests \$6,990 for the costs of administering the settlement. (Nava Decl., ¶19.) This is less than the \$8,500 maximum amount estimated in the Settlement Agreement and disclosed in the notice to class members, to which there were no objections. (Id. at ¶12 and Exhibit A thereto.)

Based on all the work performed by the

Claims Administrator, the Court awards administration costs in the requested amount of \$6,990.